

	Optumcare Management, LLC 23-01357480	Defendant OptumCare Management, LLC moves for an order sealing Exhibits G, K, M, N, O, P, and Q to the Wood Declaration in support of Optum's Motions in Limine Nos. 1-8, Exhibits A, C, F, G, H, and K to the Poth Declaration in support of Plaintiffs' Motions in Limine Nos. 1-3, and Exhibits 5-7, 13, 15, 17, and 18 to the Wood Declaration in support of Optum's Oppositions to Plaintiffs' Motions in Limine Nos. 1-3 and Addendum to Optum's Motion in Limine No. 7. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) Exhibits G, K, 5, 6, and 7 to the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration include references to patient names and account numbers. This information is confidential and protected and there is no public interest in this information that overrides the patients' right to privacy. (Manela v. Superior Court (2009) 177 Cal.App.4th 1139, 1150; Oiyee v. Fox (2012) 211 Cal.App.4th 1036, 1070.) If the exhibits are not sealed, the right to privacy of these nonparty patients will be prejudiced and the requested sealing is narrowly tailored. Thus, the Motion as to Exhibits G, K, 5, 6, and 7 of the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration is GRANTED. Exhibits M, N, O, P, Q, 13, 15, 17, and 18 to the Wood Declarations and Exhibit G to the Poth Declaration contain information regarding analytical methods, reimbursement approaches, pricing methodology, and benchmarking analyses. Optum contends disclosure of
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		this nonpublic information would provide competitors insight into nonpublic methodologies, contractual arrangements, and business strategy. When disclosure of private and confidential financial information relating to the business operations of a party would interfere with that party's ability to compete in the marketplace, a sealing order may be appropriate. (See <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286.) Additionally, "[c]ourts have found that the protecting of trade secrets is an interest that can support sealing records in a civil proceeding." (<i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Optum's requested sealing is narrowly tailored to those exhibits that contain proprietary and sensitive business information and there is no public interest in this information that overrides the parties' interests. Thus, the Motion as to Exhibits M, N, O, P, Q, 13, 15, 17, and 18 to the Wood Declarations and Exhibit G to the Poth Declaration is GRANTED. Moving party to give notice.
107	Szeto vs. Woo 19-01087212	Motion for Attorney Fees Defendants/cross-complainants Kent Salveson and EQD LLC ("EQD") move for an order granting them an award of attorney's fees against plaintiff/cross-defendant Gene Szeto, jointly and severally with his counsel Shun C. Chen, in the sum of \$30,247.80 in conjunction with their opposition to Szeto's anti-SLAPP motion and \$55,000.00 in conjunction with Szeto's unsuccessful appeal of the denial of the anti-SLAPP motion. "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion,